

CASE SUMMARY

State v. Atul

SC No. 986/2023 | FIR No. 904/2022, PS New Usmanpur | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	1 April 2026 (date of inspection / offence: 27 June 2022)
PARTIES	State (BSES Yamuna Power Ltd.) v. Atul S/o Late Balram, R/o H. No. B-135/1, Khasra No. 1/368/2, First Floor, Gali No. 10, Shanti Mohalla, Village New Usmanpur, Delhi
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Convicted under Section 135, Electricity Act, 2003 — notwithstanding that the theft bill (Rs. 86,825/-) had been settled, the amount deposited, and an NOC issued by the complainant company. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Atul dishonestly abstracted electricity at his unmetered first-floor premises — held in the name of his late father — through a single-core black aluminium wire tapped from the street-light point on BSES YPL Pole No. YVR-H-799, so as to attract Section 135(1)(a) of the Electricity Act, 2003; whether he discharged the third-proviso onus; and what effect his settlement of the civil liability, with deposit and an NOC, had on the criminal charge.

FACTS

On 27 June 2022 at about 11.11 a.m., an inspection team of BSES Yamuna Power Ltd. headed by Sh. Saurabh Sharma (Manager) inspected the first-floor premises at H. No. B-135/1, Shanti Mohalla, Village New Usmanpur, Delhi — the same building, and the same inspection drive, as the same-day prosecution of the accused’s widowed mother Gyatri Devi (FIR 759/2022, a different floor). No electricity meter was installed; the accused was found drawing supply through a single-core black aluminium wire connected from the Street Light Point at Pole No. YVR-H-799. He was present at the spot; the connected load was 4.517 KW, used for domestic purposes. Sh. Deepak videographed the proceedings and furnished a Section 65B certificate; an Inspection Report, Load Report and Seizure Memo were prepared at the spot. The company assessed a theft demand of Rs. 86,825/-, which went unpaid, and on its Authorised Officer’s complaint FIR No. 904/2022 was registered at PS New Usmanpur.

The IO, HC Anil Kumar, seized the accused’s Aadhaar card, the ownership documents of the premises — which stood in the name of his late father Balram — and Balram’s death certificate. Notice under Section 251 Cr.P.C. was given on

3 May 2024; the accused pleaded not guilty. The prosecution examined three witnesses: PW-1 Saurabh Sharma (team head; proved the CD, inspection report, load report, seizure memo, theft bill and complaint, and the seized aluminium wires Ex.P1); PW-2 Deepak (videographer; proved the video and the Section 65B certificate Ex.PW2/A); and PW-3 HC Anil Kumar (IO). Under Section 313 Cr.P.C. the accused denied everything and pleaded false implication; he led no defence evidence. His counsel submitted that the theft bill had been settled, the amount deposited, and an NOC issued by the company.

REASONING OF THE COURT

HEADNOTE

A companion to the same-day prosecution of the accused's mother at the same building: a street-light-point tap feeding unmetered premises held in the late father's name is direct theft under Section 135(1)(a), the son in occupation being the "consumer"; and settlement of the theft bill, even with deposit and an NOC, corroborates guilt rather than closing the criminal case, which the unrebutted third-proviso presumption sustains.

Section 135(1)(a) was engaged by the street-light-point tap. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for "dishonestly," and treated the single-core wire run from the street-light point on the licensee's pole to the unmetered premises as a clause (a) connection with the licensee's service facilities. On proof of that artificial means the third proviso's presumption arose.

The inspection stood proved, and the accused was identified in the 65B-certified video. PW-1 and PW-2 were consistent and uncontradicted; PW-1 deposed to having received prior information of theft from the electricity pole and identified the accused in the videography (proved with a Section 65B certificate). The seized aluminium wires were identified in court, and the load report's correctness went unchallenged; the bare suggestion that the wire was planted was denied.

Occupancy, not title, fixed the accused's status as consumer. That the premises stood in the name of the late Balram did not shield the accused: his son was in occupation and drawing the supply, and the IO had seized both the ownership documents and Balram's death certificate. As the person consuming the abstracted electricity he was the "consumer" answerable under the Act.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested.

Settlement, deposit and even an NOC could not answer the criminal charge. Following *Neeraj Dutt* and *Hiten P. Dalal* on the compulsory presumption and its rebuttal standard, the Court noted the accused led no defence evidence, claimed no Genset, and produced no paid bills (*Mukesh Rastogi*; Section 106 onus). His settlement of the Rs. 86,825/- bill, with deposit and NOC, was reasoned as elsewhere: had the claim been false he would have protested rather than paid, so the settlement corroborated the theft and the Section 135 liability survived the civil closure. The presumption stood unrebutted.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply to unmetered premises through a wire tapped from the street-light point on the licensee’s pole as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-identification safeguards (Reg. 60), the contemporaneous site report with seizure, sealing and photographic/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62), and the assessment at twice the applicable tariff for up to twelve months with credit for units already paid (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 86,825/- assessment measured the theft and required no separate proof as an ingredient.

HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available at the accused’s premises and that Atul was found indulging in direct theft of electricity through an illegal wire — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, he failed to rebut the statutory presumption, and his settlement of the civil liability did not answer the criminal charge. **Atul is accordingly convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

The son’s companion to case 013 — same building, same inspection day, same street-light pole — and another instance of settlement-plus-NOC yielding a conviction. Five propositions stand out:

- **An NOC after settlement is not immunity.** Payment of the settled bill and an NOC from the licensee closed the civil account only; the Section 135 prosecution proceeded to conviction regardless.
- **Occupancy, not title, fixes “consumer” status.** That the premises stood in the late father’s name did not shield the son in occupation who drew the supply.
- **Street-light infrastructure is the licensee’s works.** A tap on the street-light point feeding public lighting is a Section 135(1)(a) connection with the licensee’s service facilities, no different from a bare pole hook.

- **Settlement corroborates guilt.** Readiness to settle rather than protest a supposedly false bill was weighed against the accused.
- **The reverse-onus presumption did the rest.** No meter, an unexplained running load, no Genset, no paid bills — the compulsory presumption convicted.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.